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| CASE #      | CASE NAME                   | HEARING NAME                                                                                        |
|-------------|-----------------------------|-----------------------------------------------------------------------------------------------------|
| CVME2504231 | SCHROEDER VS GENERAL MOTORS | MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY BY GENERAL MOTORS |

**Tentative Ruling:** Motion for Judgment on the Pleadings is continued to the date of 10-13-26 8:30 am M301. The Court will exercise its discretion to consider the late opposition as the motion is potentially dispositive. See *Kapitanski v. Von's Grocery Store* (1983) 146 Cal. App. 3d 29, 32. The Defendant may file a reply brief in accordance with the rules but aside from that, no further briefing will be accepted.

2.

| CASE #      | CASE NAME                         | HEARING NAME                                              |
|-------------|-----------------------------------|-----------------------------------------------------------|
| CVSW2406213 | DEHAAN VS ENGLAND FAMILY MORTUARY | MOTION FOR ATTORNEYS FEES BY TINA DEHAAN, MICHAEL MAISANO |

**Tentative Ruling:** Evidentiary Objections sustained in part/overruled in part. Plaintiff's motion for Attorney's Fees is granted in part. The Court awards \$209,716.00. This consists a Lodestar computed as follows: Attorney - \$202,136.00 (367.52 Hours at \$550/hr.) and Paralegal \$7,580 37.90 hrs at \$200/hr.) Request for Multiplier denied.

**Evidentiary Objections are ruled on as follows:**

**Whooper Declaration** — Objection Nos. 5 and 17–20 are SUSTAINED. Objection Nos. 7–13, 15, and 16 are SUSTAINED in part and OVERRULED in part (sustained as to legal conclusions and overruled as to factual testimony). Objection Nos. 1–4, 6, and 14 are OVERRULED. Exhibits to the Whooper Declaration — Objection Nos. 1–5 are OVERRULED.

**Hartman Declaration** — Objection Nos. 1 and 2 are SUSTAINED in part and OVERRULED in part (sustained as to statements resting on what Mr. Whooper told him, and overruled as to Mr. Hartman's own opinion).

**Prevailing Party** - Plaintiffs are prevailing parties under the Labor Code fee-shifting provisions (Labor Code §§ 218.5, 226, 1194, 1102.5, 2802). The 998 Offer accepted by Maisano expressly preserved his right to recover "attorney's fees allowed by law, incurred to the date of this offer as determined by the court, according to proof." (Pls.' Mot. 1:6–11.) DeHaan's Settlement Agreement expressly provided that "Defendants will not contest that Plaintiff or Maisano were prevailing parties." (*Id.* at 1:12–17.) Defendants do not contest prevailing party status. The only issue is the reasonable amount of fees.

**Request** - Plaintiffs initially requested total fees of \$428,112.00, based on a \$356,760.00 lodestar (410.80 attorney hours at \$850/hour and 37.90 paralegal hours at \$200/hour) with a 1.2 multiplier. In their reply, Plaintiffs withdrew the 7.5-hour January 23, 2026 Yadira Munoz deposition entry and revised the requested lodestar to \$350,385.00 (403.30 attorney hours at \$850/hour and 37.90 paralegal hours at \$200/hour), resulting in a revised total request of **\$420,462.00** with the 1.2 multiplier.

Based on the evidence provided, the Court finds the appropriate hourly rate for Mr. Whooper in this Riverside County case to be **\$550 per hour**—above Mr. Klein's \$425 and Mr. Bradford's \$465, and toward the upper end of the local range, to reflect Mr. Whooper's 15 years of experience and specialized employment law practice. The Court finds the \$200 paralegal rate to be reasonable.